

24VECV03431 24VECV03431

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-09

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Case Number: 24VECV03431 Hearing Date: July 9, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF
LOS ANGELES - NORTHWEST DISTRICT

CRISTIAN
GALLEGOS, an individual,

Plaintiff,

vs.

MULHOLLAND SECURITY CENTERS LLC, a
Delaware limited liability company; and DOES 1-100, inclusive,

Defendants.

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CASE NO: 24VECV03431

[TENTATIVE] RULING RE: PLAINTIFF'S
MOTION TO DEEM MATTERS IN REQUESTS FOR ADMISSIONS ADMITTED AGAINST DEFENDANT;
REQUEST FOR MONETARY SANCTIONS

Dept. U

8:30 a.m.

July 9, 2026

I.

BACKGROUND

This case is a workplace disability
discrimination action filed by Plaintiff Cristian Gallegos against
Defendant Mulholland Security Centers LLC.

On

July 18, 2024, Plaintiff filed his complaint against Defendant.

On

January 30, 2026, Plaintiff served his requests for admission, set one (the
"RFAs") on Defendant. (Nabati decl., ¶

3.)

On

March 24, 2026, and after two (2) extensions of time to respond, Plaintiff received Defendant's unverified responses to the RFAs. After meeting and conferring, the parties agreed that Defendant would provide verified responses by April 8, 2026. (Nabati decl., ¶¶ 5-9.)

On April 8, 2026, Defendant failed to provide verified responses to the RFAs by the parties' agreed-upon deadline. (Nabati decl., ¶ 10.)

On April 9, 2026, Plaintiff filed his motion to deem matters in the RFAs admitted against Defendant.

On April 10, 2026, Defendant served verified responses to the RFAs on Plaintiff. (Nabati Reply decl., ¶¶ 3-6.)

On June 25, 2026, Defendant filed its opposition brief as to Plaintiff's motion to deem matters in the RFAs admitted against Defendant.

On July 2, 2026, Plaintiff filed his reply brief.

II.

LEGAL STANDARD

Where there has been no timely response to requests for admissions, the demanding party may seek an order "that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted." Code Civ. Proc., § 2033.280 (b). The court shall grant such a motion unless it finds that the party of whom the demand is being made responded to the RFA before the hearing on the said motion. Code Civ. Proc., § 2033.280 (c).

III.

DISCUSSION

Plaintiff moves to deem matters in the RFAs admitted against Defendant. The motion is denied. However, Plaintiff is awarded

sanctions against Defendant in the total amount of \$1,560.00.

a.

The

motion is denied because Defendant served verified responses before the motion's hearing.

Plaintiff moves to deem matters in the RFAs admitted against Defendant.

Where there has been no

timely response to requests for admission, the demanding party may seek an order "that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted." Code Civ. Proc., § 2033.280 (b). "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance" with the Discovery Act. Code Civ. Proc., § 2033.280

(c).

Here, there is no dispute

that Defendant served verified responses to the RFAs on April 10, 2026, well before the hearing on Plaintiff's motion.

The relevant statute states that a motion to deem matters in RFAs admitted shall be granted unless, as here, the offending party serves responses before the motion's hearing date. See Code Civ. Proc., § 2033.280 (c).

The motion is denied

because Defendant served verified responses before the motion's hearing.

b.

Plaintiff is awarded sanctions against Defendant in the total amount of \$1,560.00.

Sanctions

for a party's failure to provide a timely response to requests for admission which necessitated motion practice are mandatory. See Code Civ. Proc., § 2033.280 (c). Although delayed responses may defeat a motion for deemed admissions, they will not avoid monetary sanctions. Regardless of the reason

for the delay in responding, it is mandatory that a monetary sanction be imposed on the party or attorney, or both, whose failure to serve a timely response necessitated the filing of the deemed-admitted motion." Rutter Civ. Pro. Bef. Trial, CH. 8G-6 [8:1367] Effect of Delay or Failure to Respond to RFAs.

Here, after several extensions of time to respond, Defendant failed to serve verified responses to the RFAs before the parties' mutually-agreed-upon deadline of April 8, 2026. Defendant served its verified responses on April 10, 2026, with an explanation that the delay was partly due to counsel's observance of the Passover holiday. (Jacobi decl., ¶¶ 4-8.)

The relevant statute plainly states that attorneys' fees are "mandatory" when a party fails to timely serve responses to RFAs. See Code Civ. Proc., § 2033.280 (c). This is true "[r]egardless of the reason for the delay in responding." Rutter Civ. Pro. Bef. Trial, CH. 8G-6 [8:1367] Effect of Delay or Failure to Respond to RFAs. Thus, this Court has no discretion but to award Plaintiff his attorneys' fees incurred because of Defendant's belated responses, even though the motion will be denied.

The Court calculates reasonable attorneys' fees under the lodestar. See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.

Here, Plaintiff requests \$2,945.00, representing at least 5.77 hours of attorney time at \$500.00/hour, plus the motion's \$60.00 filing fee. (\$500.00/hour x 5.77 hours + \$60.00 filing fee = \$2,945.00.)

Counsel's request is reasonable as to the hourly rate but inflated as to the number of hours billed. 2.0 hours is a reasonable amount of time for counsel to have spent working on such a basic discovery motion, including time to review Defendant's opposition brief and to prepare a reply brief. The Court will award Plaintiff 1.0 additional hour of attorney time for counsel to appear at the motion's hearing.

Plaintiff may also recover the motion's \$60.00 filing fee.

In sum, Plaintiff is awarded his attorneys' fees against Defendant in the total amount of \$1,560.00, representing 3.0 attorney hours at \$500.00/hour, plus the motion's \$60.00 filing fee. ($\$500.00/\text{hour} \times 3.0 \text{ hours} + \$60.00 \text{ filing fee} = \$1,560.00$.) This amount is inclusive of time to attend the motion's hearing.

IV.

CONCLUSION

Plaintiff

Cristian Gallegos's motion to deem matters in requests for admission admitted against Defendant Mulholland Security Centers LLC is DENIED.

Plaintiff

Cristian Gallegos is AWARDED sanctions against Defendant Mulholland Security Centers LLC in the total amount of \$1,560.00. See Code Civ. Proc., § 2033.280 (c).

Plaintiff Cristian Gallegos is ORDERED to give notice.

DATED: July 9, 2026

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Judge of the
Superior Court